

STATE OF NEW YORK

6158--A

2025-2026 Regular Sessions

IN SENATE

March 5, 2025

Introduced by Sen. GOUNARDES -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to radio-frequency identification (RFID) tags

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 section 134-d to read as follows:

3 § 134-d. Radio-frequency identification (RFID) tag. A wireless device
4 or tag that stores and transmits information between a reader and a
5 radio-frequency identification (RFID) tag through radio waves without
6 making any physical contact or requiring a line of sight, and which is:

7 1. capable of storing, at a minimum:

8 (a) such tag's unique identification number; and

9 (b) the number plate, number plate state of issuance, number plate
10 type, and vehicle identification number of the vehicle to which such tag
11 is affixed;

12 2. physically and electronically tamper-proof;

13 3. compatible with the certificate of registration system established
14 by the department; and

15 4. compatible with interoperability standards established by the
16 department and other relevant entities for use of the E-ZPass system.
17 For the purposes of this subdivision, the "E-ZPass system" shall mean a
18 system that uses a receiver-transmitter issued by a state authority,
19 local authority, or interstate authority, as such terms are defined in
20 section two of the public authorities law, for electronic toll
21 collection when such receiver-transmitter is attached to a motor vehicle
22 in accordance with mounting instructions provided by such state authori-
23 ty, local authority, or interstate authority.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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§ 2. Paragraph a of subdivision 3 of section 401 of the vehicle and traffic law, as amended by section 1 of part H of chapter 59 of the laws of 2009, is amended to read as follows:

a. Upon filing of such application and the payment of the fee herein-after provided, the commissioner shall assign to such motor vehicle a distinctive number and, without expense to the applicant, issue and deliver in such manner as the commissioner may select to the owner a certificate of registration, in such form as the commissioner shall prescribe, and two number plates at a place within the state of New York named by the applicant in ~~[his or her]~~ such applicant's application. A number plate, within the meaning of this chapter, may, in the discretion of the commissioner, be a plate of a permanent nature, treated with reflectorized material according to specifications prescribed by the commissioner, and with a date tag attached to such plate or to the vehicle as prescribed by regulations of the commissioner indicating the validity of the plate during a certain period and the issuance of such a number plate with such date tag to a person possessing such a number plate shall be deemed the issuance of a number plate. A date tag, within the meaning of this chapter, shall include a radio-frequency identification (RFID) tag, as defined in section one hundred thirty-four-d of this chapter. An additional fee, not to exceed twenty-five dollars, shall be paid to the commissioner whenever a set of reflectorized number plates is issued for any vehicle for which a registration fee is normally charged except that, with respect to any number plate which is specifically requested by the applicant, such fee shall be paid to the commissioner upon approval of such request. In the event of the loss, mutilation or destruction of any certificate of registration, any number plate or set of number plates whether with or without a date tag or tags, or any date tag or set of date tags provided for in this article, the owner of a registered motor vehicle may file such statement and proof of the facts as the commissioner shall require, with a fee of three dollars, in the office of the commissioner, or, unless and until the commissioner shall otherwise direct, in the office of the agent who issued the certificate, plate, plates, tag or tags and the commissioner or ~~[his or her]~~ such commissioner's agent, as the case may be, shall issue a duplicate or substitute. It shall be the duty of every owner holding a certificate of registration to notify the commissioner in writing of any change of residence of such person within ten days after such change occurs, and to inscribe on such certificate, in the place provided by the commissioner, a record of such change of residence.

§ 3. This act shall take effect on the one hundred eightieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.